



EVERY PARENT SHOULD HAVE THE RIGHT TO KNOW

MEGAN'S LAW (1996)

IN CONTEXT

FOCUS

Criminal law

BEFORE

1947 California becomes the first US state to compile a register of sex offenders.

1994 The Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act is passed.

AFTER

1996 The Pam Lychner Sexual Offender Tracking and Identification Act leads to a federal database of offenders.

2006 The Adam Walsh Child Protection and Safety Act sets new conditions for the frequency at which offenders must update the authorities as to their whereabouts.

2016 International Megan's Law (a US Act) requires registered sex offenders to be identified on their passports.

Megan's Law is a US federal law that requires state authorities to make information about registered sex offenders available to the public. It was passed as an amendment to the Jacob Wetterling Act of 1994, which required states to create registers of those convicted of sexually violent crimes or crimes against children. States can decide how much information to release to the public and via what medium.

The new law was enacted as a result of the rape and murder in July 1994 of 7-year-old Megan Kanka in New Jersey. She was killed by a neighbor, 33-year-old Jesse Timmendequas, who had already been convicted of two sex crimes against children and had served 6 years in prison. Megan's parents, Maureen and Richard Kanka, launched a campaign for mandatory community notification of sex offenders, arguing that if they had known of Timmendequas's history, they would have protected their daughter from him. Within months of the murder, New Jersey enacted

Megan's Law, which became a model for the law of the same name passed in Congress 2 years later.

No one has ever doubted the good intentions of Megan's Law, but it has not reduced the number of offenses and has been denounced as a violation of the privacy rights that are guaranteed by the Fourth Amendment. It has also encouraged some to take the law into their own hands, meting out vigilante punishments against convicted sex offenders. ■



President Bill Clinton signs Megan's Law in the presence of Megan's mother and brother; New Jersey representative Dick Zimmer; and John Walsh, host of TV's *America's Most Wanted*.

See also: The US Constitution and Bill of Rights 110–117 ■ The Universal Declaration of Human Rights 222–229 ■ The European Convention on Human Rights 230–233